

**IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA**

ANDREW HEGEDUS,

CASE NO.:

Plaintiff,

DIVISION:

v.

**SHIPT, INC., a foreign corporation, and
PROGRESSIVE AMERICAN
INSURANCE COMPANY,
a foreign corporation,**

Defendants.

/

COMPLAINT

Plaintiff, ANDREW HEGEDUS, sues Defendants, SHIPT, INC. and PROGRESSIVE AMERICAN INSURANCE COMPANY, and alleges as follows:

GENERAL ALLEGATIONS

1. This is an action for damages that exceeds the sum of Fifty Thousand Dollars (\$50,000.00), exclusive of costs, interest, and attorneys' fees. Plaintiff has entered "\$50,001" in the civil cover sheet for the "estimated amount of the claim" as required in the preamble to the civil cover sheet *for jurisdictional purposes only*. The actual value of Plaintiff's claim will be determined by a fair and just jury in light of the evidence.

2. At all times material hereto, Plaintiff, ANDREW HEGEDUS, was a resident of Duval County, Florida.

3. At all times material hereto, Defendant, SHIPT, INC., was a foreign corporation authorized to conduct business and conducting business in the State of Florida and engaged in substantial and not isolated activities in the State of Florida.

4. At all times material hereto, Defendant, PROGRESSIVE AMERICAN INSURANCE COMPANY, was a foreign corporation authorized to conduct business and conducting business under the laws of the State of Florida and through its agents and representatives, regularly sold its insurance products to persons located in Duval County, Florida, and transacted business therein.

5. At all times material hereto, including August 12, 2024, Richard Leggett was an employee and/or agent of Defendant, SHIPT, INC.

6. On or about August 12, 2024, Richard Leggett owned, operated, and/or maintained a 2016 Nissan Versa hatchback motor vehicle VIN 3N1CE2CP4GL404325 at Roosevelt Square shopping center located at 4494 Roosevelt Boulevard at or near the shopping center exit to Roosevelt Boulevard in Jacksonville, Duval County, Florida.

7. At that time and place, Richard Leggett negligently operated or maintained the above-referenced motor vehicle so that it collided with Plaintiff, ANDREW HEGEDUS, as he was lawfully in the crosswalk causing serious and permanent injuries to Plaintiff.

8. At that time and place, Richard Leggett was acting within the course and scope of his employment and/or agency with Defendant, SHIPT, INC.

9. Plaintiff, ANDREW HEGEDUS, has complied with all conditions precedent to the filing of this action.

10. This Court has jurisdiction and venue is proper as this cause of action accrued in Duval County, Florida.

COUNT I
VICARIOUS LIABILITY CLAIM AGAINST
DEFENDANT SHIPT, INC.

11. Plaintiff, ANDREW HEGEDUS, realleges Paragraphs one (1) through ten (10) as

if fully set forth herein.

12. At all times material hereto, including during the time of the subject crash on August 12, 2024, Defendant, SHIPT, INC., is vicariously responsible for the acts of its employee/agent, Richard Leggett, during the time Richard Leggett operated and/or maintained the subject motor vehicle on the public roads of Jacksonville, Duval County, Florida, in the course and scope of his employment and/or agency with Defendant, SHIPT, INC.

13. As a direct and proximate result of the collision and negligence of Richard Leggett, which is imputed on Defendant, SHIPT, INC., pursuant to the *respondeat superior*, Plaintiff, ANDREW HEGEDUS, sustained physical injuries to his body and extremities, resulting in pain and suffering, mental anguish, disability, loss of capacity for the enjoyment of life, scarring, disfigurement, aggravation of a previous existing condition, expenses of medical care and treatment, loss of earnings, inconvenience, and loss of the ability to earn money in the future. These damages and losses are continuing and permanent in nature. Plaintiff, ANDREW HEGEDUS, will continue to suffer from these injuries and losses in the future.

14. This action is not subject to the exemptions contained in Section 627.737, Florida Statutes, as Plaintiff, ANDREW HEGEDUS, has sustained permanent injuries within a reasonable degree of medical probability.

WHEREFORE, Plaintiff, ANDREW HEGEDUS, demands judgment for damages plus costs and such other relief as this Court deems appropriate against Defendant, SHIPT, INC., and trial by a jury on all issues contained herein.

COUNT II
NEGLIGENT HIRING/EMPLOYMENT CLAIM AGAINST
DEFENDANT SHIPT, INC.

15. Plaintiff, ANDREW HEGEDUS, realleges Paragraphs one (1) through ten (10) as

if fully set forth herein.

16. At all times material hereto, Defendant, SHIPT, INC., was responsible for the hiring, training, employment, supervision, and entrustment of Richard Leggett as an employee/agent to act on Defendant, SHIPT, INC.'s behalf in the furtherance of its business interests.

17. At all times material hereto, Defendant, SHIPT, INC., hired, contracted, or employed Richard Leggett as a motor vehicle driver and generally perform work and services in the course and scope of his employment/agency with Defendant, SHIPT, INC., in the furtherance of its business interests.

18. At all times material hereto, as a result of hiring Richard Leggett as an employee/agent, Defendant, SHIPT, INC., had actual and constructive knowledge Richard Leggett was driving motor vehicle and generally performing work and services on Defendant, SHIPT, INC.'s behalf on the public roads of Jacksonville, Duval County, Florida.

19. At all times material hereto, Defendant, SHIPT, INC., had a duty to the public, including Plaintiff, ANDREW HEGEDUS, to comply with applicable law and industry standards in the hiring, training, employment, supervision, and entrustment of employees/agents including but not limited to Richard Leggett, which includes making a reasonable and appropriate investigation of prospective employees/agents prior to hiring them.

20. At all times material hereto, Defendant, SHIPT, INC., knew or should have known that failing to make a reasonable and appropriate background investigation of Richard Leggett prior to hiring him presented a foreseeable danger to the public, including Plaintiff, ANDREW HEGEDUS.

21. Prior to hiring Richard Leggett, it was foreseeable that he would be an unsuitable

and unsafe choice to drive motor vehicles and generally perform work and services as part of his employment/agency with Defendant, SHIPT, INC., based on his prior driving history and record of unsafe and negligent driving and unfitness to safely operate motor vehicles.

22. At all times material hereto, a reasonable and appropriate investigation of Richard Leggett prior to hiring him would have revealed he was unsuitable as a motor vehicle driver and employee/agent acting on Defendant, SHIPT, INC.'s behalf based on Richard Leggett's record of unsafe and negligent driving and unfitness to safely operate a motor vehicle.

23. Prior to hiring Richard Leggett, Defendant, SHIPT, INC., negligently failed to perform a reasonable and appropriate investigation as to Richard Leggett's background or to properly inquire as to Richard Leggett's driving history, training, and experience in the safe operation of motor vehicles and to perform the work and services applicable to his employment/agency with Defendant, SHIPT, INC.

24. As a direct and proximate result of Defendant, SHIPT, INC.'s breach of its duty and hiring and employment negligence, Plaintiff, ANDREW HEGEDUS, sustained physical injuries to his body and extremities, resulting in pain and suffering, mental anguish, disability, loss of capacity for the enjoyment of life, scarring, disfigurement, aggravation of a previous existing condition, expenses of medical care and treatment, loss of earnings, inconvenience, and loss of the ability to earn money in the future. These damages and losses are continuing and permanent in nature. Plaintiff, ANDREW HEGEDUS, will continue to suffer from these injuries and losses in the future.

25. This action is not subject to the exemptions contained in Section 627.737, Florida Statutes, as Plaintiff, ANDREW HEGEDUS, has sustained permanent injuries within a reasonable degree of medical probability.

WHEREFORE, Plaintiff, ANDREW HEGEDUS, demands judgment for damages plus costs and such other relief as this Court deems appropriate against Defendant, SHIPT, INC., and trial by a jury on all issues contained herein.

COUNT III
UNDERINSURED MOTORIST CLAIM AGAINST DEFENDANT
PROGRESSIVE AMERICAN INSURANCE COMPANY

26. Plaintiff, ANDREW HEGEDUS, re-allege Paragraphs one (1) through ten (10) as if fully set forth herein.

27. Prior to August 12, 2024, Defendant, PROGRESSIVE AMERICAN INSURANCE COMPANY, issued to Plaintiff, ANDREW HEGEDUS, an automobile insurance policy, which included in its provisions underinsured motorist benefits, under policy number 970289974, under which Plaintiff, ANDREW HEGEDUS, was afforded underinsured motorist insurance benefits. A copy of the above-described insurance policy declarations page is attached hereto as Exhibit “A.”

28. At all times material hereto, Plaintiff, ANDREW HEGEDUS, was insured under the above-described insurance policy and was entitled to underinsured motorist coverage.

29. On or about August 12, 2024, the above-described insurance policy was in full force and effect.

30. On the date of the above-described collision, Richard Leggett and Defendant, SHIPT, INC., qualified as “underinsured motorists” in that they did not maintain sufficient bodily injury liability insurance coverage to compensate Plaintiff, ANDREW HEGEDUS, for the injuries sustained as a result of the negligence of Richard Leggett and Defendant, SHIPT, INC.

31. As a direct and proximate result of the collision and the foregoing negligence, Plaintiff, ANDREW HEGEDUS, sustained physical injuries to his body and extremities, resulting

in pain and suffering, mental anguish, disability, loss of capacity for the enjoyment of life, scarring disfigurement, aggravation of a previous existing condition, expenses of medical care and treatment, loss of earnings, inconvenience, and loss of the ability to earn money in the future. These damages and losses are continuing and permanent and Plaintiff, ANDREW HEGEDUS, will continue to sustain these damages in the future.

32. Plaintiff, ANDREW HEGEDUS, timely notified Defendant, PROGRESSIVE AMERICAN INSURANCE COMPANY, of the accident and proof of the claim for damages described above. Plaintiff, ANDREW HEGEDUS, further alleges that he has complied with all conditions, terms, and obligations of the insurance policy prior to the commencement of this lawsuit.

33. Plaintiff, ANDREW HEGEDUS, is entitled to underinsured motorist benefits from Defendant, PROGRESSIVE AMERICAN INSURANCE COMPANY, under the provisions of the above-described insurance policy as Richard Leggett and Defendant, SHIPT, INC., failed to carry adequate liability insurance coverage for the subject motor vehicle collision.

34. This action is not subject to the exemptions contained in Section 626.737, Florida Statutes, Plaintiff, ANDREW HEGEDUS, has sustained permanent injuries within a reasonable degree of medical probability.

WHEREFORE, Plaintiff, ANDREW HEGEDUS, demands judgment for damages plus costs and such other relief as this Court deems appropriate against Defendant PROGRESSIVE AMERICAN INSURANCE COMPANY, and demands trial by jury of all issues contained herein.

[Signature on following page]

MORGAN & MORGAN

/s/ Andrew J. Paladino

ANDREW J. PALADINO, ESQ.

Florida Bar No.: 112678

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Jacksonville, Florida 32202

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Attorney for Plaintiff

LYNN HEGEDUS
PETER HEGEDUS
243 WHIRLAWAY CT
SAINT JOHNS, FL 32259

Policy Number: 970289974

Underwritten by:
Progressive American Insurance Co
August 19, 2024
Policy Period: May 31, 2024 - May 31, 2025
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1-800-474-1377

GOOSEHEAD INS AG LLC

Contact your agent for personalized service.

agent.progressive.com

Online Service

Make payments, check billing activity, update
policy information or check status of a claim.

1-800-274-4499

To report a claim.

Auto Insurance Coverage Summary

This is a copy of your Declarations Page

Your coverage began on May 31, 2024 at 12:01 a.m. This policy expires on May 31, 2025 at 12:01 a.m.

This coverage summary replaces your prior one. Your insurance policy and any policy endorsements contain a full explanation of your coverage. The policy limits shown for a vehicle may not be combined with the limits for the same coverage on another vehicle, unless the policy contract or endorsements indicate otherwise. The policy contract is form 9611A FL (07/17). The contract is modified by forms A340 (01/22), A261 FL (09/22), A379 FL (02/23), A264 (02/22), A331 (11/21) and A229 FL (07/23).

Drivers and household residents

Lynn Hegedus

Additional information: Named insured

Peter Hegedus

Additional information: Named insured

Andrew Hegedus



Outline of coverage**2007 TOYOTA HIGHLANDER 4 DOOR WAGON**VIN: **JTEGP21A870130563**

Garaging ZIP Code: 32259

Primary use of the vehicle: Pleasure/Personal

Annual miles: 10,000 - 11,999

Length of vehicle ownership when policy started or vehicle added: 5 years or more

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$100,000 each person/\$300,000 each accident		\$279
Property Damage Liability	\$100,000 each accident		133
Personal Injury Protection/Work Loss Excluded	\$10,000	\$0	78
Deductible applies to Named Insured and Spouse			
Uninsured Motorist - Nonstacked	\$100,000 each person/\$300,000 each accident		289
Medical Payments	\$5,000 each person		13
Comprehensive	Actual Cash Value	\$500	35
Collision	Actual Cash Value	\$500	64
Rental Reimbursement	up to \$40 each day/maximum 30 days		10
Roadside Assistance			10
Total premium for 2007 TOYOTA			\$911

2007 TOYOTA CAMRY 4 DOOR SEDANVIN: **4T1BK46K77U557893**

Garaging ZIP Code: 32259

Primary use of the vehicle: Pleasure/Personal

Annual miles: 10,000 - 11,999

Length of vehicle ownership when policy started or vehicle added: 5 years or more

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$100,000 each person/\$300,000 each accident		\$460
Property Damage Liability	\$100,000 each accident		173
Personal Injury Protection/Work Loss Excluded	\$10,000	\$0	136
Deductible applies to Named Insured and Spouse			
Uninsured Motorist - Nonstacked	\$100,000 each person/\$300,000 each accident		506
Medical Payments	\$5,000 each person		24
Comprehensive	Actual Cash Value	\$500	39
Collision	Actual Cash Value	\$500	87
Rental Reimbursement	up to \$40 each day/maximum 30 days		10
Roadside Assistance			10
Total premium for 2007 TOYOTA			\$1,445

2007 TOYOTA CAMRY 4 DOOR SEDANVIN: **4T1BK46K07U522578**

Garaging ZIP Code: 32259

Primary use of the vehicle: Pleasure/Personal

Annual miles: 10,000 - 11,999

Length of vehicle ownership when policy started or vehicle added: 5 years or more

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$100,000 each person/\$300,000 each accident		\$460
Property Damage Liability	\$100,000 each accident		173
Personal Injury Protection/Work Loss Excluded	\$10,000	\$0	136
Deductible applies to Named Insured and Spouse			
Uninsured Motorist - Nonstacked	\$100,000 each person/\$300,000 each accident		506
Medical Payments	\$5,000 each person		24
Comprehensive	Actual Cash Value	\$500	39
Collision	Actual Cash Value	\$500	87
Rental Reimbursement	up to \$40 each day/maximum 30 days		10
Roadside Assistance			10
Total premium for 2007 TOYOTA			\$1,445

2021 MAZDA CX-9 4 DOOR WAGONVIN: **JM3TCBEY0M0513728**

Garaging ZIP Code: 32259

Primary use of the vehicle: Pleasure/Personal

Annual miles: 10,000 - 11,999

Length of vehicle ownership when policy started or vehicle added: Less than 1 month

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$100,000 each person/\$300,000 each accident		\$427
Property Damage Liability	\$100,000 each accident		176
Personal Injury Protection/Work Loss Excluded	\$10,000	\$0	78
Deductible applies to Named Insured and Spouse			
Uninsured Motorist - Nonstacked	\$100,000 each person/\$300,000 each accident		254
Medical Payments	\$5,000 each person		12
Comprehensive	Actual Cash Value	\$500	131
Collision	Actual Cash Value	\$500	298
Rental Reimbursement	up to \$40 each day/maximum 30 days		25
Total premium for 2021 MAZDA			\$1,401

Total 12 month policy premium**\$5,202.00****Premium discounts**

Policy

970289974

Five-Year Accident Free, Home Owner, Multi-Car, Continuous Insurance:
Platinum, Paperless, Paid in Full and Three-Year Safe Driving

Vehicle

2007 TOYOTA
HIGHLANDERAnti-Lock Brakes, Driver and Passenger-side Airbag and Passive Anti-theft
Device2007 TOYOTA
CAMRYAnti-Lock Brakes, Driver and Passenger-side Airbag and Passive Anti-theft
Device2007 TOYOTA
CAMRYAnti-Lock Brakes, Driver and Passenger-side Airbag and Passive Anti-theft
Device2021 MAZDA
CX-9Anti-Lock Brakes, Driver and Passenger-side Airbag and Passive Anti-theft
Device**Lienholder information****Vehicle**2021 MAZDA CX-9
JM3TCBEY0M0513728**Lienholder**NAVY FEDERAL CU
LEHIGH VALLEY, PA 18002**Policyholder inquiries**

You may call your agent at 1-800-474-1377 to present inquiries or obtain information about coverage, and to obtain assistance with any complaints.

Agent signature**Company officers**

Secretary